



POPE COUNTY RESOLUTION 202424

APPROVING AMENDMENTS TO THE POPE COUNTY LAND USE CONTROLS ORDINANCE SECTIONS 2.2 DEFINITIONS, 10.4 CONSTRUCTION EROSION CONTROL STANDARD, 10.12 RENEWABLE ENERGY SYSTEMS, 10.24 STORMWATER MANAGEMENT, 11 ADMINISTRATION

WHEREAS, Pope County is authorized to carry on county planning and zoning activities in the unincorporated areas of the County pursuant to Minnesota Statute Chapter 394; and

WHEREAS, the Pope County Comprehensive Plan identifies that land use regulations are to be clear, promote greater certainty in the land development process, and be consistent with the goals of the Comprehensive Plan; and

WHEREAS, the Pope County Comprehensive Plan states that there is to be a thorough review of the County's zoning and subdivision ordinances to identify those parts that are unclear or inconsistent with the Comprehensive Plan or other county policies and make the appropriate amendments; and

WHEREAS, the Pope County Shoreland Ordinance (Ordinance #1) was adopted in 1972 and after multiple amendments and additions has subsequently (1999) become known as the Pope County Land Use Controls Ordinance; and

WHEREAS, after a thorough review of the Land Use Controls Ordinance, it was determined that certain edits, modifications and amendments were necessary for consistency, clarity, and in recognition of changing land use habits and structural preferences; and

WHEREAS, the Land & Resource Management staff has identified the need to amend and/or add definitions including access lot, administrator, controlled access lot, dwelling unit, primary dwelling unit, accessory dwelling unit, detached ADU, accessory structure ADU, attached ADU, accessory structure, guest quarter, industrial use, permeable pavement system, residential use, protected waters inventory (PWI) map; and

WHEREAS, the Land & Resource Management staff has identified the need to clarify permit, decommissioning and escrow requirements for renewable energy systems; and

WHEREAS, the Land & Resource Management staff has identified the need to remove the Construction Erosion Control Standard section; and

WHEREAS, the Land & Resource Management staff has identified the stormwater management section required amendment to clarify impervious surface standards, the general stormwater and erosion control standards, stormwater management plan requirements, financial security requirements, and maintenance requirements; and

WHEREAS, the Land & Resource Management staff has identified the need to amend the Administration section to clarify where permits are required; what is necessary to submit with permit applications; what the requirements are for sanitary, erosion and stormwater control; what the contractor responsibilities are; what construction requirements exist; provide clarification of Administrator duties; and allow for fee exceptions; and

WHEREAS, these requested amendments, initiated by Land & Resource Management staff, to amend the Land Use Controls Ordinance was considered by the Pope County Planning Advisory Commission, which after holding a public hearing on 28 September 2023 and 26 October 2023, did recommend approval of the requests to the Pope County Board of Commissioners; and

WHEREAS, the record of the public hearing includes the minutes of the Pope County Planning Advisory Commission, presentations by staff of Pope County Land & Resource Management and any comments or input as may have been offered from members of the public; and

WHEREAS, on 3 September 2024, the Pope County Board of Commissioners, pursuant to a Notice of Intent to amend the Pope County Land Use Controls Ordinance did consider the matter; and

NOW, THEREFORE, BE IT RESOLVED, that the Pope County Board of Commissioners hereby amends Sections 2.2, 10.4, 10.12, 10.24, and 11 of the Pope County Land Use Controls Ordinance; and

BE IT FURTHER RESOLVED, that the Director of the Pope County Land & Resource Management department is directed to make the changes set forth in the Pope County Land Use Controls Ordinance as follows and cause the same to be published and codified according to law.

ADOPTED by the Pope County Board of Commissioners this 3rd day of September, 2024.


Paul Gerde, County Board Chair

CERTIFICATION

I hereby certify that the above is a true and correct copy of the Resolution duly passed, adopted, and approved by the Pope County Board of Commissioners on the 3rd day of September, 2024.


Kersten Kappmeyer, County Administrator
Pope County, Minnesota



Seal

SECTION 2.2: DEFINITIONS

- ~~(2) **Access Lot:** a parcel of land that provides access to public waters.~~
- (6) **Administrator:** The Administrator is the Director of the Pope County Land & Resource Management department or the Zoning Administrator and unless otherwise indicated, the word “Administrator” as it appears in this ordinance means the Director of the Pope County Land & Resource Management department or the Zoning Administrator.
- (37) **Controlled Access Lot:** A lot used to access public waters or as a recreation area for owners of nonriparian lots within the same subdivision containing the controlled access lot.
- (46) **Dwelling Unit:** Any structure or portion of a structure, or other shelter which is permanently located on a lot/parcel, that provides complete independent living facilities, for one or more persons.
- a. **Primary Dwelling Unit:** the main dwelling unit or residence on a lot, with the primary use of the structure being residential.
 - b. **Accessory Dwelling Unit (ADU):** A smaller, independent residential dwelling unit located on the same parcel as a primary dwelling unit. ADUs may include:
 - i. **Detached ADU:** A type of ADU that is placed permanently on the same parcel as a single-family dwelling unit.
 - ii. **Accessory Structure ADU:** A type of ADU that is part of an accessory structure.
 - iii. **Attached ADU:** A type of ADU that is part of an expanded or remodeled primary dwelling, not a duplex, e.g. an apartment in a basement or attic area.
- (4) **Accessory structure:** Any structure which is not the primary dwelling unit, is used for onsite storage of personal belongings or personal use, e.g., garages, barns, sheds, workshops and ADUs.
- a. **Agricultural Structure:** A structure whose use is for agricultural purposes, including farm machinery storage, crop storage or housing livestock which is associated with an agriculture operation.
 - b. **Garage:** A residential, private building or portion of a building, typically associated with a primary dwelling unit, used mainly for the storage of motor vehicles.
 - c. **Storage Structure/Unit:** A structure used for storage purposes of personal property.
 - d. **Yard Shed:** A structure meeting the definition of an accessory structure which is less than 144 square feet.
- (X) **Guest quarter:** An inhabitable living space in an accessory building.
- (63) **Industrial Use:** Any activity engaged in the manufacturing, processing, and production, cleaning treatment, servicing, testing, repair or storage of goods or products.
- (XX) **Permeable Pavement System:** As defined in the Minnesota Stormwater Manual, permeable pavement systems allow stormwater runoff to filter through surface voids into an underlying reservoir where it is temporarily stored and/or infiltrated. The most commonly used permeable pavement surfaces are pervious concrete, porous asphalt, and permeable interlocking concrete pavers.
- (X) **Residential Use:** the use of property or structures, or portions thereof used, designed, or intended to be used for human habitation as a private home or residence and includes appurtenant structures such as:
- a. ~~**Residential accessory use or structure:** any use and/or structure that is customarily a part of, and clearly incidental and secondary to a residence, and does not change the character of the residential use. This definition includes the following detached accessory structures, and other similar structures normally associated with a residential use of property. See also agricultural accessory structure.~~
 - b. Garages
 - c. Gazebos
 - d. Greenhouses (noncommercial)

- e. Spas and hot tubs
- f. Yard sheds
- g. Studios
- h. Swimming pools
- i. Tennis and other on-site sport courts
- j. Workshops
- k. ADUs.

~~(93) Protected Waters Inventory (PWI) map:~~ the official Minnesota Department of Natural Resources map setting forth the inventoried waters and wetlands.

10.12 RENEWABLE ENERGY SYSTEMS

10.12.1 Wind Energy Conversion Systems

- A. The purpose of this ordinance is to set forth a process for permitting wind energy facilities with a rated capacity of less than 5,000 kilowatts (or five megawatts). MN Statutes 116C.697 pre-empts all local authority over permitting or regulating the construction or operation of wind power facilities of five megawatts (five million watts) of name plate generator capacity or greater. All definitions shall be recognized by the language referenced in MN Rules 4401 and MN Statutes 116C.697.

Types of Wind Energy Conversion Systems (WECS) shall be divided into the following categories and shall meet the respective requirements:

1. **Hobbyist.** This type of system is designed for a nameplate rating not to exceed 40 kilowatts. The system may be connected to the commercial electrical grid and electricity sold. Several small owned turbines joined together are or may be considered to be commercial application.
 - a. Require an Interim Use Permit including a site plan.
 - b. Towers are free standing or guyed, and do not exceed 75 feet in height.
 - c. Systems that directly connect to the commercial electrical grid shall conform to National Electrical Code (NEC).
 - d. Applications for WECS that directly connect to the commercial electrical grid shall be accompanied by a Net Excess Generation (NEG) contract with the respective electrical power company.
2. **Residential Commercial.** These systems are designed not to exceed 500 kilowatts of electrical output. The system may be connected to the commercial electrical grid and electricity sold. Applications for this use also require notification to the Minnesota Department of Commerce.
 - a. Require an Interim Use Permit for towers not exceeding 170 feet in height including a site plan.
 - b. Non-free standing, guyed or non-lattice towers shall not exceed 120 feet in height. Guyed lattice towers shall not exceed 170 feet in height.
 - c. Wind energy structural and mechanical systems engineering plan including soil investigation shall be developed by a qualified and licensed professional engineer to conform to applicable structural and mechanical standards.
 - d. Systems that directly connect to the commercial electrical grid shall conform to National Electrical Code (NEC).
 - e. Power Purchase Agreement (PPA) or other acceptable contract for the use or sale of power with the respective electrical power company is required as a condition of the Interim Use Permit before the turbine is operable.
3. **Commercial.** These systems are designed exclusively to be connected to the commercial electrical grid and electricity sold with a nameplate rating exceeding 500 kilowatts. Applications for this use also require notification to the Minnesota Department of Commerce before any approval is granted.

- a. Require an Interim Use Permit.
 - b. Towers shall not exceed 350 feet in height excluding the rotor blades.
 - c. Wind energy structural and mechanical systems engineering plan including soil investigation shall be developed by a qualified and licensed professional engineer to conform to applicable structural and mechanical standards.
 - d. Commercial systems shall conform to National Electrical Code (NEC).
 - e. A Power Purchase Agreement (PPA) or other acceptable contract for use or sale of power with the respective electrical power company is required as a condition of the Interim Use Permit before the turbine is operable.
4. **Experimental.** These systems are designed and operated exclusively for research, testing, prototyping, education, demonstration, and development to supply electricity to loads isolated from the commercial grid.
- a. Require a Land Use Permit for towers 170 feet or less in height including a site plan.
 - b. Require an Interim Use Permit for towers more than 170 feet in height including a site plan.
 - c. Non-free standing, guyed non-lattice towers shall not exceed 120 feet in height.
 - d. Guyed lattice towers shall not exceed 170 feet in height.
 - e. Wind energy structural and mechanical systems engineering plan including soil investigation shall be developed by a qualified and licensed professional engineer to conform to applicable structural and mechanical standards.
 - f. Commercial systems shall conform to National Electrical Code (NEC).

B. Additional Standards

In addition to the respective standards, all wind energy conversion systems shall comply with the following standards:

1. **Districts and Setbacks:**
 - a. Except for the Hobbyist system or those with a nameplate rating that does not exceed 40 kilowatts, WECS's are allowed only in the Agricultural (A-1, A-2) and Commercial/Industrial (C/I) Districts. Shoreland, Residential and other districts are prohibited.
 - b. WECSs with a nameplate rating that does not exceed 40 kilowatts can be located within the shoreland zone of Natural Environment lakes that have less than 500 surface acres contingent that there's no adverse impact upon state and federal easements or related policies.
 - c. Except for the Hobbyist system, towers shall be located no closer than 750 feet from the nearest residence other than the applicant.
 - d. All towers shall be located no closer than five (5) rotor diameter (RD) from any other wind tower project.
 - e. Towers shall be set back from all residential structures, property lines,

public road and railroad right-of-ways an amount equal to the height of the tower plus 25 feet. Guy wires for towers shall be set back 25 feet from all property lines and public road rights-of-way. Notwithstanding the foregoing, the county may grant an Interim use permit for the construction of a residence or establishment of a WECS which does not meet these setback requirements provided that the permit is conditioned upon the applicant obtaining a covenant from the owner of record of each existing use from which the proposed use must be set back, which waives the protection of the setback and consents to the applicant's proposed use. The covenant must be in recordable form and binding on the grantor's heirs and assigns, and must be recorded by the applicant before the Interim Use Permit is effective.

2. Towers shall be constructed of, and/or treated with corrosive resistant material.
3. WECS towers and electrical equipment shall be maintained and inspected according to manufacturer's requirements by qualified personnel.
4. WECS electrical and mechanical equipment that is connected to a commercial electrical grid shall be maintained and inspected according to manufacturer's requirements by qualified personnel.
5. The use of any portion of a WECS tower for signs/placards other than warning, identification, or equipment information sign/placards is prohibited. Signs or placards for warning, identification, or equipment information shall not exceed six square feet or exceed 20 feet from ground. The manufacturer's or owner's name/logo printed on the nacelle is exempt from this standard.
6. The addition of any non-WECS's equipment to a WECS's tower is prohibited. Towers that do not exceed 75 feet in height are exempt from this requirement.
7. All towers must be painted a solid, natural tone color.
8. For lattice structures or towers with external ladder access or towers over 75 feet tall, a suitable protective anti-climbing solution must be approved by the Department.
9. The Permittee shall not operate a turbine so as to cause microwave, television, radio, telecommunications or navigation interference contrary to Federal Communications Commission (FCC) regulations or other law. In the event the turbine and its associated facilities or its operations cause such interference, the Permittee shall take timely measures necessary to correct the problem.
10. Noise is regulated by the Minnesota Pollution Control Agency under Chapter 7030. Any WECS shall not exceed 50 dB(A), as measured at the closest neighboring inhabited dwelling. The level, however, may be exceeded during short-term events such as utility outages and/or severe wind storms.
11. Each WECS permit or Interim Use Permit may include a utility building for protection of associated equipment not to exceed 100 square feet.
12. All towers shall utilize minimal lighting. No tower lighting other than normal security lighting shall be permitted except as may be required by the Federal Aviation Administration. It may be appropriate to allow for some infrared lights or heat lamps to prevent icing of sensors.

C. Decommissioning

1. Decommissioning of the system must occur within ninety (90) days of either of the following:
 - a. The end of the system's serviceable life; or
 - b. The system becomes a discontinued use.
2. A system shall be considered a discontinued use after one (1) year without energy production, unless a plan is developed and submitted to the Administrator outlining the steps and schedule for returning the system to service.
3. The following provisions must be followed to ensure that facilities are properly decommissioned upon the end of the project life or facility abandonment:
 - a. Remove all structures and debris to a depth of four (4) feet.
 - b. Restoration of the soil.
 - c. Restoration of vegetation (consistent and compatible with surrounding vegetation).
4. If the WECS isn't removed within 12 months after cessation of the operations at a site, Pope County may remove the tower and associated facilities and assess the costs of removal against the property.
5. If a WECS has been abandoned (meaning not having been in operation for a period of six (6) months) or is defective or is deemed to be unsafe by the Administrator, the WECS shall be required to be repaired by the owner to meet federal, state and local safety standards, or be removed by the property owner within the time period allowed by the Administrator. If the owner fails to remove or repair the defective or abandoned WECS, the Administrator may pursue legal action to have the system removed at the owner's expense.
6. **Decommissioning Plan & Escrow:**
 - a. Decommissioning plans shall outline the anticipated means and cost of removing the system at the end of its serviceable life or upon it becoming a discontinued use. The cost estimates shall be made by a competent party, such as a professional engineer, a contractor capable of decommissioning or a person with suitable expertise or experience with decommissioning. The salvage or resale value of the infrastructure shall not be used in calculating any offset or credit against the estimate of the total cost to remove the infrastructure and reclaim the property to its original condition. The plan shall also identify the financial resources that will be available to pay for the decommissioning and removal of the system.
 - b. The Pope County Board of Commissioners requires the owner and/or operator of the WECS to provide financial surety by the establishment of a cash escrow in an amount equal to the cost estimate provided in accordance with section 10.12.1.B.13.b, or as approved by the Pope County Board of Commissioners, to ensure that decommissioning shall be completed if the applicant or operator for any reason fails to meet the requirements of section 10.12.1.C.

10.12.2 Solar Energy Systems (SES)

A. Purpose:

This ordinance aims to promote the accommodation of distributed, on-site residential and non-residential solar energy systems (SES) and associated equipment, as well as provide adequate access to sunlight necessary for such systems. This ordinance does not address utility-scale SES.

This ordinance permits SES as either primary or accessory uses, while protecting the safety and welfare of adjacent and surrounding land uses through appropriate zoning and land use controls. Where general standards and specific criteria overlap, specific criteria shall supersede general standards.

Types of Solar Energy Systems (SES):

1. **Accessory (<250 kW):** Accessory to the primary use of the land, designed to supply energy for onsite residential use.
 - a. Rooftop SES:
 - i. These systems are allowed accessory uses in all districts in which buildings are permitted.
 - ii. No land use permit is required.
 - b. Ground-mount SES:
 - i. Ground-mount systems are permitted accessory uses in all districts in which buildings are permitted.
 - ii. Ground-mount systems require a land use permit and are subject to the standards for the district in which it is located, including setback, height, and impervious surface coverage limits.
 - iii. The collector surface of a ground-mount system is not considered impervious surface, but any foundation, compacted soil, or other component of the solar installation that rests on the ground is considered impervious surface.
2. **Solar Garden (250 kW – <10 MW):** Roof or ground-mount SES, may be either accessory or primary use.
 - a. Rooftop SES are permitted in all districts in which buildings are permitted. No land use permit is required.
 - b. Ground-mount Solar Gardens require an interim use permit in all districts.
 - c. All structures must comply with setback, height, and coverage limitations for the district in which the system is located.
 - d. Ground-mount Solar Gardens must comply with all required standards for structures in the district in which the system is located.
3. **Solar Farm (10 – <50 MW):** Roof or ground-mount SES, generally a primary use, designed for export to the wholesale market or connection to the electric transmission grid.
 - a. Rooftop SES are permitted in all districts in which buildings are permitted.

- b. Ground-mount Solar Farms require an interim use permit in all districts.
 - c. All structures must comply with setback, height, and coverage limitations for the district in which the system is located.
 - d. Ground-mount Solar Farms must comply with all required standards for structures in the district in which the system is located.
4. **Utility (≥ 50 MW):** Large scale SES of equal to or greater than 50 MW, these systems are reviewed and permitted by the State.

B. Definitions:

The following words, terms and phrases, when used in this Section, shall have the meaning provided herein, except where the context clearly indicates otherwise:

- 1. **Accessory Use:** A use customarily incidental and subordinate to the primary use or building and located on the same lot therewith. A use which dominates the primary use or building in area, extent, or purpose shall not be considered an accessory use.
- 2. **Administrator:** The Administrator is the Director of the Pope County Land & Resource Management department and unless otherwise indicated, the word “Administrator” as it appears in section 10.12.2 of the Land Use Controls Ordinance means the Director of the Pope County Land & Resource Management department.
- 3. **Building-Integrated Solar Energy System:** An active SES that is an integral part of a principal or accessory building, rather than a separate mechanical device, replacing or substituting for an architectural or structural component of the building. Building-integrated systems are contained within roofing materials, windows, skylights and awnings.
- 4. **Electricity Generation:** (aka production, output) The amount of electric energy produced by transforming other forms of energy, commonly expressed in kilowatt-hours (kWh) or megawatt-hours (MWh).
 - a. **Kilowatt-hour (kWh):** A unit of energy equivalent to one kilowatt (1 kW) of power expended for 1 hour of time.
 - b. **Megawatt-hour (MWh):** A unit of energy equivalent to one Megawatt (1 MW) of power expended for 1 hour of time.
- 5. **Electrical Equipment:** Any device associated with a SES, such as an outdoor electrical unit/control box, that transfers the energy from the SES to the intended on-site structure.
- 6. **Mounting:** The manner in which a solar PV system is affixed to the roof or ground (i.e. roof mount, ground mount).
 - a. **Roof-Mount System (aka rooftop mounted, building mounted):** A SES consisting of solar panels installed directly on the roof of a home, commercial building, or an accessory structure, such as a garage, pergola, or shed. Solar panels are mounted and secured using racking systems specifically designed to minimize the impact on the roof and prevent any leaks or structural damage. Roof-mount systems can be mounted flush with the roof or tilted toward the sun at an angle.

- b. **Ground-Mount System:** A SES that is directly installed on specialized solar racking systems, which are attached to an anchor in the ground and wired to connect to an adjacent home, building or agriculture structure. Ground-mount systems may be applicable when insufficient space, structural and shading issues, or other restrictions prohibit rooftop solar.
- 7. **Power:** The rate at which work is performed (the rate of producing, transferring, or using energy). Power is measured in Watts (W), kilowatts (kW), Megawatts (MW), etc.
 - a. **Kilowatt:** (kW) Equal to 1000 Watts; a measure of the use of electrical power.
 - b. **Megawatt:** (MW) Equal to 1000 Kilowatts; a measure of the use of electrical power.
- 8. **Racking:** SES are attached securely and anchored to structural sections of the roof-mount or ground-mount systems. Specially designed metal plates called flashings prevent leaks and are placed under shingles and over bolts to create a water-tight seal.
- 9. **Solar Access:** the ability of one property to continue to receive sunlight across property lines without obstruction from another's property (buildings, foliage or other impediment). Solar access is calculated using a sun path diagram.
- 10. **Solar Array:** Multiple solar panels combined together to create one system.
- 11. **Solar Collector:** A device, structure, or part of a device or structure for which the primary purpose is to transform solar radiant energy into thermal, mechanical, chemical, or electrical energy.
- 12. **Solar Energy:** Radiant energy received from the sun that can be collected in the form of heat or light by a solar collector.
- 13. **Solar Energy System (SES):** A system capable of collecting and converting solar radiation into heat or mechanical or electrical energy and transferring these forms of energy by a separate apparatus to storage or to point of use, including, but not limited to, water heating, space heating or cooling, electric energy generation, or mechanical energy generation.
- 14. **Solar Glare:** The effect produced by light reflecting from a solar panel with an intensity sufficient to cause annoyance, discomfort, or loss in visual performance and visibility.
- 15. **Substation:** Any electrical facility containing power conversion equipment designed for interconnection with power lines. Part of the electrical transmission system converting high voltage to low voltage or converting low voltage to high voltage for incorporation into the electrical power grid.
- 16. **Tilt:** The angle of the solar panels and/or solar collector relative to their latitude. The optimal tilt to maximize solar production is perpendicular, or 90 degrees, to the sun's rays at true solar noon. True solar noon is when the sun is at its highest during its daily east-west path across the sky. SES can be manually or automatically adjusted throughout the year. Alternatively, fixed-tilt systems remain at a static tilt year-round.

C. Performance Standards

1. Setbacks:

- a. Accessory SES must meet minimum structure setbacks for the corresponding zoning district.
- b. Non-residential Accessory SES, Solar Gardens and Solar Farms must meet minimum structure setbacks for the corresponding zoning district and be located a minimum of two hundred (200) feet from a residential dwelling not located on the property. Setbacks shall be measured to the nearest solar array or other structure within the SES, excluding security fencing, screening or berm.
- c. Solar Gardens and Solar Farms must be setback from the centerline of public roadways in all zoning districts as per the following:
 - i. Five hundred (500) feet from the centerline of Arterial, Major Collector and Minor Collector roads; and
 - ii. Two hundred fifty (250) feet from the centerline of Local roads.

2. Maximum Height: ground-mount systems shall not exceed twenty-five (25) feet in height at maximum ground tilt. Roof- mount SES shall not exceed the maximum allowed height in any zoning district. For purposes of height measurement, SES other than building-integrated SES shall be considered to be mechanical devices and are restricted consistent with other building-mounted mechanical devices for the zoning district in which the system is being installed, except that SES shall not be required to be screened.

3. Impervious Surface: Includes any foundation, poles, compacted soil and other impervious components of the solar installation that rests on the ground. Vegetated ground under the collector surface can be used to mitigate stormwater runoff.

4. Vegetation:

- a. All interim use permit projects are required to meet the following vegetation standards.
- b. The project site design shall include the installation and establishment of ground cover meeting the beneficial habitat standards consistent with Minnesota Statutes, section 216B.1642, or successor statutes and guidance as set by the Minnesota Board of Water and Soil Resources, which includes but is not limited to:
 - i. The DNR *Prairie Establishment & Maintenance Technical Guidance for Solar Projects*, BWSR *Sample Specifications for the Establishment of Native Vegetation as Part of Habitat Friendly Solar Projects*, and/or any successor guidance shall be utilized.
 - ii. BWSR *Solar Site Pollinator Habitat Assessment Form for Project Planning* must be completed and submitted, a minimum score of 70 must be attained to receive “Habitat Friendly Solar” status.
- c. Beneficial habitat standards shall be maintained onsite for the duration of operations, until the site is decommissioned.

- d. To ensure beneficial habitat standards are maintained the site shall be inspected by an independent, third-party professional each year until year 3, then on a triennial basis.
 - i. BWSR *Solar Site Pollinator Habitat Assessment Form for Established Plantings (after year 3)* shall be completed by an appropriately trained ecologist every 3 years to ensure maintenance of the beneficial habitat standards.
- 5. **Stormwater and Erosion Control:**
 - a. Systems shall be in compliance with Section 10.24 of the Pope County Land Use Controls Ordinance.
 - b. Best Management Practices shall be utilized for managing erosion control.
- 6. **Slope:** Structures may not be placed on slopes over 12%.
- 7. **Floodplain:** Structures may not be placed in the floodway. If the floodway is not shown on the official maps, an analysis is required to demonstrate the structures are outside the floodway.
- 8. **Signage:** The use of any portion of a SES for signs/placards other than warning, identification, or equipment information sign/placards is prohibited. Signs or placards for warning, identification, or equipment information shall not exceed six square feet or exceed 20 feet from ground.
- 9. **Aviation:** Solar panels shall not be placed in the vicinity of any airport in a manner that would interfere with airport flight patterns. Acknowledgement from the Federal Aviation Administration (FAA) may be necessary.
- 10. **Glare:**
 - a. Solar panels shall be placed such that concentrated solar radiation or glare shall not be directed onto nearby properties or roadways.
 - b. All SES using a reflector to enhance solar production shall minimize glare from the reflector that affects adjacent or nearby properties. Steps to minimize glare nuisance may include selective placement of the system, screening on the north side of the solar array, reducing use of the reflector system, or other remedies that limit glare.
- 11. **Other Standards and Codes:**
 - a. All power transmission lines from a ground-mount SES to any building or other structure shall be located underground.
 - b. Systems shall be designed and operated in a manner that protects public safety.
 - c. Systems shall be in compliance with any applicable local, state and federal regulatory standards, including, but not limited to, the State of Minnesota Uniform Building Code, as amended, and the Minnesota and National Electric Code, as amended.
 - d. Electric SES components that are connected to a building electric system must have an Underwriters Laboratory (UL) listing.

- e. The installation and ongoing maintenance of the SES shall conform to applicable industry standards, such as those of the American National Standards Institute (ANSI), Underwriters Laboratories (UL), the American Society for Testing and Materials (ASTM), Institute of Electrical and Electronics Engineers (IEEE), or other similar certifying organizations, and shall comply with all other applicable fire and life safety requirements.
- f. Upon completion of installation, all components of the SES shall be maintained in good working order in accordance with standards of the codes under which it was constructed. Failure of the property owner to maintain the SES in good working order is grounds for appropriate enforcement.

D. Application Requirements:

The following requirements are for SES interim use permit applications.

1. A site plan of existing conditions drawn at an Engineer's scale showing the following:
 - a. Existing property lines and property lines extending three hundred (300) feet from the exterior boundaries, including the names of the adjacent property owners and current use of those properties.
 - b. Existing public and private roads, showing widths of the roads and any associated easements.
 - c. Location and size of any existing or abandoned wells, and sewage treatment systems.
 - d. Existing buildings and any impervious surface.
 - e. Topography at two (2) foot intervals and source of contour interval. A contour map of surrounding properties may also be required.
 - f. Existing vegetation (list type and percent of coverage; e.g. grassland, pasture, plowed field, wooded areas, etc.).
 - g. Waterways, watercourses, lakes, public water wetlands and delineated wetlands.
 - h. The one Hundred (100) - year flood elevation and Regulatory Flood Protection Elevation, if applicable.
 - i. Floodway, flood fringe and/or general flood plain district boundary, if applicable.
 - j. The shoreland district boundary, if any portion of the project is located within a shoreland district.
 - k. In the shoreland district, the ordinary high water level and the highest known water level.
 - l. In the shoreland district, the toe and top of any bluffs within the project boundaries.
 - m. Surface water drainage patterns.
 - n. Mapped soils according to the USDA NRCS Web Soil Survey.

2. A site plan of proposed conditions drawn at an Engineer's scale showing the following:
 - a. Topography at two (2) foot intervals and source of contour interval.
 - b. Location and spacing of solar panels.
 - c. Location of access roads.
 - d. Planned location of underground electric lines connecting the SES to the building, substation or other electric load.
 - e. New electrical equipment other than at the existing building or substation that is the connection point for the SES.
 - f. Sketch elevation of the premises accurately depicting the proposed SES and its relationship to structures on adjacent lots (if any).
3. To determine the existence of wetlands, a Level 2 wetland delineation is required. Other levels may be appropriate if approved by the Land & Resource Management staff.
4. Verification, by the local Wetland Conservation Act Specialist, that the proposed project will not negatively impact or be located in an identified wetland.
5. Manufacturer's specifications and recommended installation methods for all major equipment, including solar panels, mounting systems and foundations for poles or racks.
6. Number of Solar Collectors to be installed.
7. A description of the method of connecting the array to a building or substation.
8. Ground-mount system applications shall identify existing vegetation on installation site (list type and percent of coverage; e.g. grassland, plowed field, wooded areas, etc.), and provide a maintenance plan for controlling vegetative growth onsite upon installation of the SES.
9. **Stormwater Management:** A Preliminary Stormwater Pollution Prevention Plan (SWPPP) will be required, designed as per the Minnesota Stormwater Manual.
10. **Visual Impact Analysis:** An analysis of the potential visual impacts from the project including solar panels, roads and fencing along with measures to avoid, minimize or mitigate the visual effects shall be required. A plan may be required showing vegetative screening or buffering of the system from those items to mitigate for visual impacts.
11. **Aviation Analysis:** If the project is within two miles of an airport, the applicant must complete and provide the results of the Solar Glare Hazard Analysis Tool (SGHAT) for the Airport Traffic Control Tower cab and final approach paths, consistent with the Interim Policy, FAA Review of Solar Energy Projects on Federally Obligated Airports, or successor policy. The applicant must also complete the Air Space Case Analysis (Form 7460) and provide the results.
12. **Decommissioning Plan & Escrow:**
 - a. Solar Garden and Solar Farm scale SES require a Decommissioning Plan in accordance with the following section 10.12.2.E.

- b. The Pope County Board of Commissioners requires the owner and/or operator of the Solar Garden or Solar Farm scale SES to provide financial surety by the establishment of a cash escrow in an amount equal to the cost estimate provided in accordance with section 10.12.2.E.1., or \$150,000 per megawatt when no cost estimate is provided as per section 10.12.2.E.1., or as approved by the Pope County Board of Commissioners, to ensure that decommissioning shall be completed if the applicant or operator for any reason fails to meet the requirements of section 10.12.2.E.

E. Decommissioning:

A decommissioning plan shall be submitted with all applications for Solar Garden and Solar Farm scale SES.

1. Decommissioning plans shall outline the anticipated means and cost of removing the system at the end of its serviceable life or upon it becoming a discontinued use. The cost estimates shall be made by a competent party, such as a professional engineer, a contractor capable of decommissioning or a person with suitable expertise or experience with decommissioning. The salvage or resale value of the infrastructure shall not be used in calculating any offset or credit against the estimate of the total cost to remove the infrastructure and reclaim the property to its original condition. The plan shall also identify the financial resources that will be available to pay for the decommissioning and removal of the system.
2. Decommissioning of the system must occur within ninety (90) days of either of the following:
 - a. The end of the system's serviceable life; or
 - b. The system becomes a discontinued use.
3. A system shall be considered a discontinued use after one (1) year without energy production, unless a plan is developed and submitted to the Administrator outlining the steps and schedule for returning the system to service.
4. If a ground-mount SES is removed, any earth disturbance as a result of the removal of the ground-mount SES shall be graded and reseeded.
5. If a ground-mount SES has been abandoned (meaning not having been in operation for a period of six (6) months) or is defective or is deemed to be unsafe by the Administrator, the SES shall be required to be repaired by the owner to meet federal, state and local safety standards, or be removed by the property owner within the time period allowed by the Administrator. If the owner fails to remove or repair the defective or abandoned SES, the Administrator may pursue legal action to have the system removed at the owner's expense.

F. Effective Date

SECTION 10 PERFORMANCE STANDARDS

10.4 RESERVED FOR FUTURE USE

10.24 EROSION CONTROL & STORMWATER MANAGEMENT:

10.24.1 Purpose

- A. The purpose of this section is to protect public health and safety, water resources, the general welfare of the community and the public enjoyment and use of Pope County's natural resources.
- B. This section serves to provide standards to help regulate construction site erosion and uncontrolled stormwater runoff due to land disturbing and land development activities.

10.24.2 Impervious Surface Standards

- A. **Maximum impervious surface coverage of parcels/lots shall not exceed the following:**

Zoning District	Maximum Impervious Surface	Applicable Area	Requirements
• Shoreland-General Development • Shoreland-Recreational Development • Shoreland-Rivers & Streams	25%	Total lot area above the OHW	• Site Analysis of stormwater flows • 2 Erosion Control BMPs • Stormwater Management Plan
• Shoreland-Natural Environment	20%	Total lot area above the OHW	• Site Analysis of stormwater flows • 2 Erosion Control BMPs • Stormwater Management Plan
• Residential	25%	Total lot area	• Site Analysis of stormwater flows • 2 Erosion Control BMPs
• Non-Intensive Agriculture • Agriculture Protection	Not Applicable	Project Area	• Site Analysis of stormwater flows • 2 Erosion Control BMPs
• Commercial • Industrial	Not Applicable	Parcel area	• Site Analysis of stormwater flows • 2 Erosion Control BMPs • Stormwater Management Plan

- B. For purposes of calculating impervious surface on undeveloped parcels/lots, a twelve (12) foot wide driveway will be assumed.

C. **Exemptions to Impervious Surface Standards**

1. Extractive use.

10.24.3 General Standards

- A. **Site Analysis/Plan:** All construction, land disturbance or development activities shall be required to include a site analysis of said property to determine current and

proposed stormwater flows, required erosion control and/or stormwater management best management practices (BMPs):

1. Site Analysis/Plan shall include:
 - a. All current site features
 - b. Proposed site features
 - c. Topography including at a minimum two foot contours
 - d. Current stormwater flows/drainage patterns
 - e. Proposed stormwater flows/drainage patterns
 - f. Two (2) proposed erosion control and stormwater BMPs as provided in the Minnesota Stormwater Manual.
 2. Site analysis/plans may be completed by a landowner, unless otherwise stated in this ordinance. A landowner may alternatively elect to employ a stormwater management professional, licensed engineer, or registered land surveyor.
 3. All sites shall be required to show the location of two (2) BMPs that will be installed prior to construction.
 4. Site Analysis/Plan shall be reviewed and approved by the department prior to any disturbance or construction activities taking place.
 5. The Department shall evaluate the erosion control and stormwater management needs of each lot in doing all reviews, approvals, and permit issuances.
 6. Upon installation of said erosion control or stormwater BMPs, the Permit holders or their designated agent shall notify the Department within 24 hours after implementation of the approved stormwater management plan or erosion control measures.
 7. The Department shall conduct an on-site inspection to ensure compliance with the approved stormwater management plan.
- B. Proper erosion and sediment control practices shall be followed within the county as described in this section. All land disturbing activities, whether or not a permit is required, shall be subject to the following performance standards:
1. All sites shall be required to install two (2) BMPs, as detailed above on the site analysis/plan, prior to construction.
 2. No land owner, operator, contractor or applicant shall cause or conduct any land disturbing activity which causes erosion or sedimentation, damages water or soil resources or creates off-site impacts.
 3. No land disturbing activity shall result in an increase in channel erosion in any watercourse, whether permanent or intermittent, at any time during or following development.
 4. No land disturbing activity shall result in the creation of unstable slopes which persist after the completion of the development.
 5. All development shall conform to the natural limitations presented by the topography and soil types in order to minimize soil erosion and sedimentation.

6. Land disturbing activities shall only occur in increments of workable size such that adequate erosion and sediment controls can be provided throughout all phases of a development. The smallest practical area of land shall be exposed or otherwise disturbed at any one period of time.
7. Permanent or temporary soil stabilization shall be applied to disturbed areas (areas where vegetation has been removed or where cuts have been made), as soon as possible, but not to exceed fourteen (14) days after a substantial portion of rough grading has been conducted unless an extension is granted by the Administrator. Soil stabilization measures shall be selected to be appropriate for the time of year, site conditions and estimated duration of use.
8. Every applicant for a permit shall, at a minimum, adhere to erosion control measure standards and specifications contained in the MPCA publication “Protecting Water Quality in Urban Areas”; or a successor publication.

10.24.4 Stormwater Management Plans

A. Stormwater Management Plans are Required under the following circumstances:

1. Any new resort and/or planned unit development in accordance with Section 10.17 of this Ordinance.
2. Redevelopment of an existing parcel that currently exceeds impervious surface lot coverage limits and will stay at or below current impervious surface coverage. The redevelopment of an impervious area already being treated by an approved stormwater plan does not require a new plan to be implemented. A letter shall be submitted from a licensed engineer certifying that the existing stormwater facilities are properly installed, functioning and maintained.
3. Any variance request relating to impervious surface coverage limits shall require the submittal of a stormwater management plan, prepared by a stormwater management professional, licensed engineer or registered land surveyor, pursuant to this ordinance.
 - a. The Stormwater Management Plan shall be submitted to the Department for approval prior to issuance of any permits for said property.
 - b. Permit holders or their designated agent shall notify the Department within 24 hours after implementation of the approved stormwater management system.
 - c. The Department shall conduct an on-site inspection of stormwater management systems to ensure compliance with the approved stormwater management plan.
4. Any other land development activity including, but not limited to, redevelopment or alteration of existing buildings and other structures that the Administrator determines may significantly increase downstream runoff volumes, flooding, soil erosion, water pollution or property damage or significantly impact a lake, stream or wetland.

B. Stormwater Management Design Standards

1. All stormwater management plans shall be designed for permanent on-site treatment of one inch of stormwater runoff on all impervious surface coverage on the lot.
 - a. This means that a volume of water equal to one inch multiplied by the area of impervious surface must be treated.
2. All stormwater management systems shall be capable of safely passing a 2 year-24-hour storm event, before the runoff leaves the project site or enters surface waters.
3. Treated stormwater runoff shall use existing natural drainage ways and vegetated soil surfaces to convey, store, further filter, and retain stormwater runoff before discharge to public waters or off site.
4. Preference shall be given to designs using surface drainage, vegetation, infiltration and volume reduction techniques rather than buried pipes and man-made materials and facilities.
 - a. Volume reduction techniques may include infiltration basins, rain gardens, enhanced infiltration swales, filter strips, disconnected impervious areas, soil amendments, bioretention, and other approved volume reduction techniques.
5. Constructed stormwater outfalls to public waters and non-incidental wetlands must provide for filtering or settling of suspended solids and skimming of surface debris before discharge into said waterbody or basin.
6. All management technologies must be consistent with the most current version of the Minnesota Stormwater Manual, which is incorporated herein by reference.
7. **Permeable Pavement Systems:**
 - a. As defined in the Minnesota Stormwater Manual, permeable pavement systems allow stormwater runoff to filter through surface voids into an underlying stone reservoir where it is temporarily stored and/or infiltrated. The most commonly used permeable pavement surfaces are pervious concrete, porous asphalt, and permeable interlocking concrete pavers.
 - b. Permeable pavement systems should not be used in high pollutant loading sites, should not be used as a pollutant treatment method, and they are not suitable for high traffic areas. See the Minnesota Stormwater Manual for further design specifications.
 - c. Permeable pavement systems for projects 400 square feet in size or smaller shall not require an engineered design provided that the manufacturer's specifications, industry standards, the Minnesota Stormwater Manual and all other aspects of this ordinance are followed.

- d. The following standards apply to Conditional Use Permit and Variance Applications:
 - i. The base of the installed permeable pavement system must have a minimum of three feet separation from the seasonally saturated soils or from the bedrock.
 - ii. The design of a permeable pavement system must allow the infiltration of one inch of stormwater on the pavement surface.
 - iii. Permeable pavement systems for projects over 400 square feet in size shall require an engineered design provided that the manufacturer's specifications, industry standards, the Minnesota Stormwater Manual and all other aspects of this ordinance are followed.

C. Stormwater Management Plan Requirements:

- 1. All required plans shall be drawn to an easily legible scale, shall be clearly labeled and shall be signed by its designer (landowner or professional where required). A minimum scale of 1:100 shall be used, unless otherwise approved by the Administrator.
- 2. A narrative describing the proposed project, including an implementation schedule.
- 3. A grading plan shall be submitted that includes:
 - a. Existing and proposed property lines and lot dimensions.
 - b. Existing and proposed drainage, utility and other easements.
 - c. Existing zoning classifications for land within and abutting the development.
 - d. Location and dimensions of existing and proposed public and private roads and structures.
 - e. All natural and artificial water features including, but not limited to, lakes, ponds, streams (including intermittent streams) and ditches. Where available, show the ordinary high water level of all lakes, one hundred (100) year flood elevations and any delineated wetland boundaries.
 - f. Existing vegetative cover, wooded areas and a clear boundary of any vegetation proposed for removal.
 - g. Existing and proposed elevations shown at two (2) foot contours, extending at least two hundred (200) feet beyond the property boundaries or as required to clearly indicate the relationship of proposed changes to existing topography and remaining features.
 - h. Locations and dimensions of all proposed land disturbing activities and any phasing of those activities.
- 4. A drainage plan of the developed site showing the direction stormwater will be conveyed, locations where stormwater will be allowed to collect and locations of all discharge points from the property. The drainage plan shall show all drains or tile lines on the property.

5. A preconstruction and postconstruction Erosion Protection and Sediment Control Plan.
6. A landscape plan or written description of methods used to achieve final stabilization, the type of stabilization and rate of application. Stabilization methods shall be described for each major phase of construction including, but not limited to, mass grading operations and stabilization for individual lots within any development.
7. Information shall be included which clearly identifies all elevations and grades for streets, ditches, stormwater management facilities, wetlands, lakes, pipe inverts and pipe outlets.
8. A map showing the boundaries of each soil type, the hydrologic classification of each soil type and the estimated acreage of each soil type. The soil information shall be based on the most current version of the United States Department of Agriculture (USDA) Web Soil Survey, or a successor publication.
9. A detailed schedule of anticipated starting date and completion date of each phase of construction and/or land disturbing activity, including the installation of erosion and sediment control measures needed to meet the requirements of this Ordinance.

10.24.5. Financial Security

A. Financial guarantees required for:

1. Standard subdivisions;
2. Resorts;
3. PUDs.

B. Once a stormwater management plan is approved by action of the Board of County Commissioners or the Administrator, a financial guarantee, as described below, shall be submitted to the County. This guarantee is necessary to ensure the satisfactory installation, completion and maintenance of the measures as required in the stormwater management plan.

1. A stormwater management system cost estimate analysis shall be completed by a competent party, such as a professional engineer, a contractor capable of installation of the stormwater management system or a person with suitable expertise or experience with stormwater management systems. The analysis shall identify the financial resources that will be available to pay for the installation and maintenance (20 years) of the stormwater management system.
2. To ensure that the stormwater management system is properly installed and functioning per design, the Pope County Board of Commissioners requires the owner and/or operator of the property to provide financial surety by the establishment of a cash escrow in an amount equal to the cost estimate analysis provided in accordance with section 10.24.5.B.1. Any alternative in the amount or form of assurance must be approved by the Pope County Board of Commissioners.

3. Final plat approval or issuance of a conditional use permit shall not be granted until a financial guarantee has been submitted to the County.
4. Release of any portion of the financial guarantee is contingent on approval from a professional engineer that as-built conditions meet original design specifications and a site visit by County staff is conducted to evaluate the condition of erosion and sediment control measures.

10.24.4 Maintenance of Stormwater Facilities

- A. All stormwater management facilities shall be designed to minimize the need for maintenance, to provide access for maintenance purposes and to be structurally sound.
- B. All stormwater management facilities shall have a plan of operation and maintenance that assures continued effective removal of pollutants carried in stormwater runoff.
- C. It shall be the responsibility of the applicant to obtain any necessary easements or other property interests to allow access to the stormwater management facilities for inspection and maintenance purposes.
- D. The Board may require a developer to enter into a contract with a stormwater professional who would perform periodic inspection and maintenance for installed stormwater management facilities.
- E. Newly installed and rehabilitated catch basins shall be provided with a sump area for the collection of coarse-grained material as specified by the Minnesota Stormwater Manual. It shall be the duty of the landowner to clean such basins when sediment or other material has accumulated to occupy 25% of the basin's original volume.

10.24.5 Minnesota Pollution Control Agency Permit

- A. Construction activity that results in the disturbance of one or more acres will require:
 1. A National Pollutant Discharge Elimination System (NPDES)/State Disposal System (SDS) stormwater permit from the Minnesota Pollution Control Agency (MPCA);
 2. A Stormwater Pollution Prevention Plan; and
 3. All other requirements as prescribed by MPCA.
- B. Construction activity that results in the disturbance of less than one acre may also require a MPCA permit depending on the nature of the activity.
- C. Permit applicants are responsible to contact MPCA to determine if a permit is required.

SECTION 11 ADMINISTRATION

11.1 PERMIT REQUIREMENTS:

11.1.1 A permit is required prior to:

- A. Erecting or installing a new structure.
- B. Altering any structure or part thereof if the outside dimensions are changed.
- C. The use of a structure being converted to another use.
- D. Moving any structure on to a parcel, subject to Section 4.6.13 and 5.6.1 where applicable.
- E. The installation, replacement and/or alteration of a sewage treatment system as required in Section 10.20.
- F. The commencement of grading and filling activities in shoreland, subject to Section 4.6.10.
- G. The commencement of mining activities, subject to Section 10.2.
- H. Any land use activity listed as a permittable, conditional or interim use in this ordinance subject to applicable performance standards, unless identified as permittable by right.

11.1.2 Permit Exceptions:

- A. Uses which are permittable by right.
- B. Portable, unattached accessory structures or yard sheds, provided they are:
 - a. Less than 144 square feet.
 - b. Uninhabitable (no residential sleeping or living quarters, i.e., cannot be considered a dwelling unit or guest quarters).
- C. Repair or replacement of structural components which do not alter structure dimensions or use, e.g. siding, roofing, windows, etc.

11.1.3 Application Requirements:

- A. An application for a permit shall be made on forms supplied by the County.
- B. Each application shall include a sketch plan drawn to scale showing the exact size and location of the buildings and accessory buildings to be erected, and the size and location of any existing buildings, wells or sewers located on the lot. The location of stormwater best management practices (BMPs) shall also be indicated on the sketch plan.
- C. **Certificate of Survey and Staking Requirements:** If the request is to locate the proposed structure at less than one and a half (1½) times the property line setback (excluding OHWL setback), or expand an existing structure, a certificate of survey shall be completed, by a Licensed Land Surveyor, and must be provided with the application.
- D. Construction floor plans shall be provided for all construction projects, including the existing and proposed floor plans.
- E. An application is deemed complete when all required fees, plans and data are submitted.

- F. Fees for permit applications shall be according to the fee schedule resolution of the County Board of Commissioners.

11.1.4 Sanitary, Erosion, and Stormwater Control Requirements:

- A. Before a permit can be issued for any building, the requirements of Section 10.20 pertaining to sanitary facilities shall be met.
- B. Before any permit is issued under this section, the erosion control & stormwater management standards found in Section 10.24 shall be met.
- C. Before any permit is issued under this section, a minimum of two (2) site appropriate stormwater BMPs shall be identified with the application which shall meet department approval.
- D. The BMPs, in conformance with Section 10.24, shall be installed by the contractor or landowner and be inspected by the department prior to any construction activities taking place.

11.1.5 Contractor Responsibilities:

- A. It shall also be the duty of the contractor to make certain that the permit is secured before the construction begins.
- B. Contractors performing construction activities without the benefit of an issued permit shall be subject to monetary penalty as specified in the fee schedule resolution of the County Board of Commissioners.
- C. It is the responsibility of the contractor to comply with any and all conditions associated with the permit approval.

11.1.6 Construction period:

A permit issued by the department is valid for a period of one year. If construction is not substantially completed at one year, a permit extension of up to one year may be granted by the Administrator with cause and payment of the permit extension fee as identified in the Pope County Fee Schedule.

- A. Construction may not commence until such time as stormwater BMPs and erosion control measures have been installed and inspected by the department.
- B. Construction is considered completed when the exterior of the structure is fully completed to the extent that there appears to be no additional construction necessary.

11.2 Administrator:

11.2.1 The duties of the Administrator shall include the following:

- A. Administer and enforce this ordinance.
- B. Assist the public in complying with and understanding their responsibilities and rights under this ordinance and provide any information about the ordinance upon request.
- C. Issue permits required by this ordinance, subject to the provisions stated within this ordinance.
- D. Receive and forward all applications for Conditional Use Permits, Interim Use Permits, Standard Subdivisions, Rezoning, or amendments to this ordinance to the County Planning Advisory Commission and the Board of County Commissioners.
- E. Receive and forward all Variance applications, appeals or petitions to the County Board of Adjustment.

- F. Keep the necessary records pertaining to this ordinance.
- G. The Administrator, subject to County Board approval, shall have the authority to revoke any permit issued under this ordinance whereupon it is found that the holder of the permit has violated any of the terms of this ordinance or any stated conditions of the permit.
- H. The Administrator and/or a duly appointed representative, shall have the authority to enter, at reasonable times, upon the premises of property located in any of the zoning districts described herein to determine compliance with this ordinance.
- I. The Administrator shall have authority to issue administrative orders directing owners and users of land to discontinue uses or activities which violate the provisions of this ordinance.

11.3 FEES:**11.3.1 Description:**

- A. All fees collected as required by this ordinance shall be credited to the County General Revenue Fund.
- B. All fees collected pursuant to this ordinance shall be according to a fee schedule resolution of the County Board of Commissioners.
- C. Prior to adoption of the fee schedule resolution, the County Board shall hold a public hearing thereon.
- D. In any event that an applicant for Conditional Use, Interim Use, Variance or Preliminary Plat requests a special meeting of Planning Commission or Board of Adjustments for the purpose of expedient action on said permit, said applicant shall pay the full cost of the special meeting.

11.3.2 Fee Exceptions:

- A. Losses due to fire or natural disasters if within 24 months. Replacement structure to be in original location, with substantially similar dimensions.
- B. Portable, unattached accessory structures or yard sheds, provided they are:
 - a. Less than 144 square feet.
 - b. Uninhabitable (no residential sleeping or living quarters, i.e., cannot be considered a dwelling unit or guest quarters).
- C. Applicants who secure a Conditional Use Permit (CUP) for purposes as defined below, shall not incur an additional permitting fee for the activity or structure provided an application is submitted to the department for the aforementioned activity or structure within one (1) year of the issuance of said CUP and the requirements of Section 11.1.1 of this ordinance are complied with. If, however, the project has not started after one (1) year from the date of issuance of said CUP, a fee shall be collected. This shall include:
 - a. Shoreland Alterations requiring a CUP, as defined in Section 4.6.10.
 - b. Used Accessory Structures requiring a CUP, as defined in Section 4.6.13 and 5.6.1.
 - c. Non-farm residences requiring a CUP, as defined in Sections 6 and 7, provided the requirements of Section 11.1.1 are complied with.